

- (5) Selection must be on merit.
- (6) A person may be selected only if he meets the requirements of section 25.
- (7) A person may not be selected if he is a member of the commission.
- (8) In making selections for the appointment of judges of the Court the commission must ensure that between them the judges will have knowledge of, and experience of practice in, the law of each part of the United Kingdom.
- (9) The commission must have regard to any guidance given by the Lord Chancellor as to matters to be taken into account (subject to any other provision of this Act) in making a selection.
- (10) Any selection must be of one person only.

28 Report

- (1) After complying with section 27 the commission must submit a report to the Lord Chancellor.
- (2) The report must –
 - (a) state who has been selected;
 - (b) state the senior judges consulted under section 27(2)(a) and any judge consulted under section 27(3);
 - (c) contain any other information required by the Lord Chancellor.
- (3) The report must be in a form approved by the Lord Chancellor.
- (4) After submitting the report the commission must provide any further information the Lord Chancellor may require.
- (5) When he receives the report the Lord Chancellor must consult each of the following –
 - (a) the senior judges consulted under section 27(2)(a);
 - (b) any judge consulted under section 27(3);
 - (c) the First Minister in Scotland;
 - (d) the Assembly First Secretary in Wales;
 - (e) the Secretary of State for Northern Ireland.

29 The Lord Chancellor's options

- (1) This section refers to the following stages –

Stage 1: where a person has been selected under section 27

Stage 2: where a person has been selected following a rejection or reconsideration at stage 1

Stage 3: where a person has been selected following a rejection or reconsideration at stage 2.

- (2) At stage 1 the Lord Chancellor must do one of the following –
 - (a) notify the selection;
 - (b) reject the selection;

- (c) require the commission to reconsider the selection.
- (3) At stage 2 the Lord Chancellor must do one of the following –
 - (a) notify the selection;
 - (b) reject the selection, but only if it was made following a reconsideration at stage 1;
 - (c) require the commission to reconsider the selection, but only if it was made following a rejection at stage 1.
- (4) At stage 3 the Lord Chancellor must notify the selection, unless subsection (5) applies and he makes a notification under it.
- (5) If a person whose selection the Lord Chancellor required to be reconsidered at stage 1 or 2 was not selected again at the next stage, the Lord Chancellor may at stage 3 notify that person's name to the Prime Minister.
- (6) In this Part references to the Lord Chancellor notifying a selection are references to his notifying to the Prime Minister the name of the person selected.

30 Exercise of powers to reject or require reconsideration

- (1) The power of the Lord Chancellor under section 29 to reject a selection at stage 1 or 2 is exercisable only on the grounds that, in the Lord Chancellor's opinion, the person selected is not suitable for the office concerned.
- (2) The power of the Lord Chancellor under section 29 to require the commission to reconsider a selection at stage 1 or 2 is exercisable only on the grounds that, in the Lord Chancellor's opinion –
 - (a) there is not enough evidence that the person is suitable for the office concerned,
 - (b) there is evidence that the person is not the best candidate on merit, or
 - (c) there is not enough evidence that if the person were appointed the judges of the Court would between them have knowledge of, and experience of practice in, the law of each part of the United Kingdom.
- (3) The Lord Chancellor must give the commission reasons in writing for rejecting or requiring reconsideration of a selection.

31 Selection following rejection or requirement to reconsider

- (1) If under section 29 the Lord Chancellor rejects or requires reconsideration of a selection at stage 1 or 2, the commission must select a person in accordance with this section.
- (2) If the Lord Chancellor rejects a selection, the commission –
 - (a) may not select the person rejected, and
 - (b) where the rejection is following reconsideration of a selection, may not select the person (if different) whose selection it reconsidered.
- (3) If the Lord Chancellor requires a selection to be reconsidered, the commission –
 - (a) may select the same person or a different person, but
 - (b) where the requirement is following a rejection, may not select the person rejected.

- (4) The commission must inform the Lord Chancellor of the person selected following a rejection or requirement to reconsider.

Terms of appointment

32 Oath of allegiance and judicial oath

- (1) A person who is appointed as President of the Court must, as soon as may be after accepting office, take the required oaths in the presence of –
 - (a) the Deputy President, or
 - (b) if there is no Deputy President, the senior ordinary judge.
- (2) A person who is appointed as Deputy President of the Supreme Court must, as soon as may be after accepting office, take the required oaths in the presence of –
 - (a) the President, or
 - (b) if there is no President, the senior ordinary judge.
- (3) A person who is appointed as a judge of the Supreme Court must, as soon as may be after accepting office, take the required oaths in the presence of –
 - (a) the President, or
 - (b) if there is no President, the Deputy President, or
 - (c) if there is no President and no Deputy President, the senior ordinary judge.
- (4) Subsections (1) and (2) apply whether or not the person appointed as President or Deputy President has previously taken the required oaths in accordance with this section after accepting another office.
- (5) Subsection (3) does not apply where a person is first appointed as a judge of the Court upon appointment to the office of President or Deputy President.
- (6) In this section “required oaths” means –
 - (a) the oath of allegiance, and
 - (b) the judicial oath,as set out in the Promissory Oaths Act 1868 (c. 72).

33 Tenure

A judge of the Supreme Court holds that office during good behaviour, but may be removed from it on the address of both Houses of Parliament.

34 Salaries and allowances

- (1) A judge of the Supreme Court is entitled to a salary.
- (2) The amount of the salary is to be determined by the Lord Chancellor with the agreement of the Treasury.
- (3) Until otherwise determined under subsection (2), the amount is that of the salary of a Lord of Appeal in Ordinary immediately before the commencement of section 23.
- (4) A determination under subsection (2) may increase but not reduce the amount.